

25VECV0469 25VECV0469

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Case Number: 25VECV0469 Hearing Date: August 21, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Todd M. Collras,

Plaintiff,

v.

BMW of North America, LLC, et al.

Defendants.

Case Number Department

25VECV00469 107

COURT'S [TENTATIVE] ORDER RE:

Motion for the Imposition of Evidentiary, Issue, and/or Terminating Sanctions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

I. BACKGROUND

On December 21, 2021, Plaintiff Todd M. Collras ("Plaintiff") purchased a 2022 BMW M340i (the "Vehicle"). (Complaint ¶ 9.) Plaintiff presented the Vehicle for repairs in July 2022, and "reported an abnormal noise emitting from the steering wheel." (Complaint ¶ 12.) The Vehicle's exterior mirrors' folding function also failed to active, the infotainment system controls malfunctioned, the emergency call system light illuminated, and the heating, ventilation, and air conditioning unit shut down unprompted. (Complaint ¶ 12.) In September 2023, Plaintiff presented the Vehicle "and reported an abnormal noise emitting from the front left side while driving over uneven terrain." (Complaint ¶ 13.) In October 2024, Plaintiff presented the Vehicle "and reported an abnormal noise recurrently emitting from the steering wheel." (Complaint ¶ 14.) An abnormal noise also emitted from the front end while driving over uneven terrain and the front-collision warning light illuminated. (Complaint ¶ 14.)

On January 28, 2025, Plaintiff filed a complaint against Defendants BMW of North America, LLC, Bob Smith VC Calabasas LLC dba Bob Smith BMW, and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; (3) violation of the Song-Beverly Act section 1793.2; and (4) negligent repair.

On January 12, 2026, Defendant BMW of North America, LLC ("Defendant") filed a motion to compel vehicle inspection and for the imposition of evidentiary, issue, and/or terminating sanctions under Code of Civil Procedure sections 2023.010 and 2023.030 (the "Motion"). On February 27, 2026, Plaintiff filed an opposition. On March 2, 2026, Plaintiff filed another opposition. On March 2, 2026, Defendant filed a reply.

On May 22, 2026, the court ordered Plaintiff and Defendant to complete the vehicle inspection within (14) days of that order. Plaintiff was ordered to produce the removed aftermarket components for Defendant's inspection on that same date. Plaintiff and Defendant then submitted supplemental briefing and declaration(s) to the court on what that inspection revealed about the Vehicle's condition, as it relates to the removed aftermarket components, by June 5, 2026. The court continued the hearing on the terminating, issue, and evidentiary sanctions to June 18, 2026. On June 18, 2026, the court ordered Plaintiff and Defendant to complete the vehicle inspection within (14) days of this order. Plaintiff was ordered to produce the removed aftermarket components for Defendant's inspection on that same date. Plaintiff and Defendant were ordered to submit supplemental briefing and declarations to the court on what that inspection revealed about the Vehicle's condition, as it relates to the removed aftermarket components, by August 21, 2026. The court continued the hearing on the terminating, issue, and evidentiary sanctions to August 21, 2026. On August 19, 2026, Defendant filed a Supplemental Brief Regarding Sanctions for Plaintiff's Spoliation of the Evidence and a declaration which states "that the audio and electrical related issues that the customer experienced with the vehicle were the result of the aftermarket system and components and related work to the vehicle." Plaintiff has not filed a supplemental brief on this issue.

II. LEGAL ANALYSIS

"Spoliation of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.) Spoliation is a "misuse of the discovery process that is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions." (Id.) "Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (Id.)

Plaintiff argues he did not engage in spoliation of evidence because "[t]he aftermarket audio components were removed but not destroyed" and the aftermarket parts remain in Plaintiff's possession. (Plaintiff Supplemental Brief p. 2.) The court is not persuaded. Plaintiff's counsel's declaration concedes the aftermarket components were removed from the Vehicle. (Cardenas Declaration ¶ 6.) Defendant submits a declaration by its technical field analyst, Ricardo Jimenez, who states "[t]he removal of the aftermarket parts made it impossible for me to inspect and test the vehicle in the condition that it was in at the time that Plaintiff was experiencing the alleged concerns he identified." (Jimenez Declaration ¶ 10.) Plaintiff submits no evidence disputing this statement. The court finds Plaintiff significantly altered the Vehicle by removing the aftermarket components. It is not sufficient that Plaintiff retained the removed aftermarket components.

The court finds the appropriate sanction to remedy Plaintiff's discovery abuse is an adverse inference instruction. The court will grant Defendant's request, and the jury will be instructed that it may infer that the Vehicle's condition, had it been produced for inspection as noticed, would have been unfavorable to Plaintiff's claims. (Defendant's Supplemental Brief p. 15.) Defendant's remaining requests for terminating sanctions, issue sanctions, and evidentiary sanctions are denied. (Defendant's Supplemental Brief pp. 14-15.)

Dated: August 21, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court